

FIRST ENDORSEMENT

Andre Applewhite, Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble Sr., Department Advocate's Office, June 14, 2024. Contents noted. Recommend approval of the negotiated settlement agreement in DADS No. 2021-24233 against PO Marcos Rodriguez Tax Registry No. 954285. The case was conferenced on June 4, 2024, before Assistant Deputy Commissioner of Trials Anne Stone who approved the negotiated penalty of a Command Discipline A with the forfeiture of ONE (1) vacation day for DADS No. 2021-24233 after PO Rodriguez accepted the finding(s) of substantiation of the allegations contained in the Charges and Specifications. The Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-24233

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, RODRIGUEZ	FIRST MARCOS	M.I.	COMMAND HOUSING PSA 5
SHIELD NO. 30263	TAX REGISTRY NO. 954285	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2013	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Marcos Rodriguez, on or about November 30, 2019, at approximately 2000, while assigned to PSA 5 and on duty, in the vicinity of in front of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 1.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Marcos Rodriguez, on or about November 30, 2019, at approximately 2000, while assigned to PSA 5 and on duty, in the vicinity of in front of § 87(2)(b) New York County, wrongfully used force, in that he grabbed § 87(2)(b) arm without police necessity.	DISMISSED	

DC B... 8/9/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Thomas D. Santos 9/18/24
POLICE COMMISSIONER DATE



POLICE DEPARTMENT

September 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 201910389 (Incident Date: November 30, 2019) involving Police Officer Marcos Rodriguez, Tax No. 954285 (DADS No. 2021-24233)

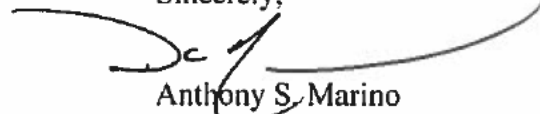
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Marcos Rodriguez and has determined that his actions do not warrant the proposed penalty.

Police Officer Rodriguez was alleged to have engaged in an improper stop where he subsequently used excessive force on an individual. The assignment originated with a 911 transmission of a suspect in possession of a machete walking on the street. There were several conflicting descriptions from verified callers regarding the clothing the suspect was wearing. At the time of the individual's stop, the most recently transmitted clothing description of the suspect was a red sweater, blue jeans, and a brown hoodie with white stripes. The description of the race and gender of the suspect was also consistent with the stopped individual. Additionally, the individual was stopped one block south of the incident location heading in the opposite direction of where the callers indicated the suspect was walking. Upon being stopped and questioned, the individual made a motion to suggest he was attempting to leave. Police Officer Rodriguez used the necessary minimal force to grab the individual by the arm to prevent him from leaving until the conclusion of their investigation. There was no complaint of pain and no injury to the individual who was released shortly thereafter.

Based on the foregoing, the Police Commissioner intends to direct that Police Officer Rodriguez receive formalized training for the improper stop and impose no disciplinary for the allegation of force.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Michael Martinez, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 16, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. 201910389 PO Marcos Rodriguez Tax No. 954285
Disciplinary Case No.: 2021-24233

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 11, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of the Police Commissioner’s intent to impose training. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that the Police Commissioner reviewed the entirety of this matter and determined that training would be an appropriate penalty for PO Rodriguez and stated the following:

“There were several conflicting descriptions from verified callers regarding the clothing the suspect was wearing. At the time of the individual's stop, the most recently transmitted clothing description of the suspect was a red sweater, blue jeans, and a brown hoodie with white stripes. The description of the race and gender of the suspect was also consistent with the stopped individual. Additionally, the individual was stopped one block south of the incident location heading in the opposite direction of where the callers indicated the suspect was walking. Upon being stopped and questioned, the individual made a motion to suggest he was attempting to leave. Police Officer Rodriguez used the necessary minimal force to grab the individual by the arm to prevent him from leaving until the conclusion of their investigation.”

However, it is important to reiterate that the description of the suspect available to PO Rodriguez and officers prior to stopping § 87(2)(b) **a 14-year-old minor**, was a bald man carrying a machete, a Hispanic male with a red sweater, average height, heavy set and a beige, blue jeans and brown hoodie. § 87(2)(b) was a 14-year-old, 5’9” tall, Hispanic male with a slim build and short to medium length curly hair, who was wearing a light grey unzipped hoodie, a red/orange collared t-shirt, black pants, and black shoes. Aside from gender and race, § 87(2)(b) did not match the description available to the officers at the time and PO Rodriguez, having over 6 years of experience prior to this incident, should be familiar with the Patrol Guide and governing law.

It is essential that officers conduct stops in accordance with People v. DeBour, 40 N.Y.2d 210 (1976). During PO Rodriguez's CCRB interview, he acknowledged that, aside from the report of an armed suspect and the description they were provided over the radio, he did not make any observations which led him to believe that § 87(2)(b) possessed a weapon. That is direct evidence that there was no reasonable suspicion as required by law to make a stop. Furthermore, as acknowledged by the Police Commissioner, § 87(2)(b) was walking in the opposite direction indicated by the callers. The CCRB carefully considered the totality of circumstances when resolving this matter with a Schedule A CD and a forfeiture of one (1) day.

The CCRB deviated from the mitigated penalty of five (5) days for Excessive Force-nonlethal/no injury per the NYPD Matrix Excessive Force Guidelines. Moreover, PO Rodriguez accepted the findings of substantiation. While the CCRB acknowledges you are the final arbiter of discipline, it respectfully disagrees with your assessment and imposition of formalized training and requests that the negotiated plea agreement between the CCRB, the respondent and respondent's counsel be upheld.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board